

**IN THE LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT**

W.P.No.2605 of 2023

Hamayat-ur-Rehman,
Ex-Inspector Intelligence

Versus

Ministry of Defence and
Strategic Plans Division
(SPD), etc.

JUDGMENT

Dates of Hearing:	25.03.2026
Petitioner by:	Mr. Atif Nisar and Mian Muhammad Ajmal Parvez, Advocates.
Respondents by:	Barrister Zain Mansoor, Assistant Attorney General and Mr. Muhammad Irshad, Assistant Advocate-General. M/s. Usman Jillani, Maaz-ul-Mulk, Ahmed Raza Mirza, Anusha Fakhre-Alam and Waqas Akbar, Advocates for Respondents No.2 to 7.

JAWAD HASSAN, J. Through this writ petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the “Constitution”), the Petitioner has impugned the order dated 08.05.2019 issued by the Appellate Authority/Chairman, Joint Chief of Staff Committee; whereby his appeal against his termination from service was rejected. He also sought direction to the Respondents for release of all his service/pensionary benefits.

(I) OVERTURE OF THE CASE

2. This judgment examines the maintainability of the instant writ petition, wherein the Petitioner has challenged his termination from service and sought release of service/pensionary benefits against the Respondents, i.e. Air Weapon Complex (AWC), a strategic organization functioning under the

National Command Authority (NCA), in the context of the legal status of the governing service regime and the scope of constitutional jurisdiction under Article 199 of the Constitution. The main question requiring determination is whether, applying the functional test developed in judicial precedents in the judgments reported as Waqas Rafi Awan v. National Engineering and Scientific Commission, Islamabad through Chairman and 2 others (2021 PLC (C.S.) 1309) (Nescom case), “MUHAMMAD BASHIR versus FEDERATION OF PAKISTAN and NESPAK and others” (2024 PLC (C.S.) 170) (Nespak case) and Munda Eleven Cricket Club versus Federation of Pakistan and 4 others (PLD 2017 Lahore 802) (Munda Eleven case), the service framework governing the Petitioner is statutory or non-statutory in nature; and consequently whether the relationship between the parties gives rise to enforceable public law rights so as to attract writ jurisdiction, or remains within the realm of a master and servant relationship excluding such constitutional intervention? In determining the said question, the Court is required to examine whether the relevant rules/regulations merely provide instructions for internal control and administrative management, in which case they would be non-statutory in character, or whether they extend beyond internal governance and operate as complementary provisions to the parent statute in matters of substantive and institutional significance, in which event they may assume a statutory character.

(II) PRELUDE OF THE CASE

3. The Petitioner was initially enrolled as Intelligence Supervisor in AWC on 05.10.1998, who served there for almost 14 years as a permanent employee. Thereafter, on his own request, he was posted to Counter Intelligence Team (CIT), Strategic Plans Division (SPD) for a period of two years. However, due to unforeseen issues and physical health problems, the Petitioner applied for transfer back to AWC on 14.06.2012. Subsequently, he again moved applications for posting on 16.10.2012 and 13.02.2013, which were considered but rejected by the Headquarters Security Division. Thereafter, the Petitioner applied for leave without pay, which was allowed

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by the Commanding Officer (CIT-3) w.e.f. 24.07.2013 due to physical illness/weakness. It is stated that on 10.09.2013, the Petitioner received a show cause notice, which he duly replied, and on the same day, he was asked to appear before the Director General Intelligence on 03.10.2013. The Petitioner also moved an application for release from service on compassionate grounds with full benefits; however, he was again served with another show-cause notice dated 07.10.2013, which was also duly replied. Later, on 22.10.2013, he was called to the office of Respondent No.7/Commanding Officer CIT-3 Islamabad, where he was handed over a certificate and directed to return all relevant service documents. Since then, the Petitioner has been awaiting his service benefits, but no positive response has been received, and he claims to have been deprived of his legal vested rights.

Being aggrieved, the Petitioner filed Writ Petition No.97/2015, which was disposed of vide order dated 20.04.2016 with the direction to appear before Respondent No.7/Commanding Officer, CIT-3, Islamabad. In compliance thereof, the Petitioner appeared, but no action was taken. Thereafter, he filed Crl. Org. No.105/W/2016, which was disposed of with directions to Respondent No.1 to decide the matter within two months; however, the said directions were not complied with. Consequently, the Petitioner filed another contempt petition Crl. Org. No.85/W/2017, wherein he was again directed to appear before Respondent No.7 on 09.05.2019. The Petitioner also submitted another application dated 29.04.2019. Upon appearance on 09.05.2019, he came to know that his appeal had already been decided vide the impugned letter dated 08.05.2019 and he had been terminated from service.

The Petitioner asserts that he was terminated from service without affording an opportunity of hearing and was deprived of his legal vested rights. Hence, this petition.

(III) PETITIONERS' SUBMISSIONS

4. Mr. Atif Nisar, Advocate submitted that the impugned actions/order of the Respondents are illegal, unlawful and void *ab initio*, having no sanctity in the eyes of law. He contended that the Petitioner had been serving the department since 1998, but the Respondents, without affording him any opportunity of hearing, terminated him and then dismissed his appeal without hearing him in sheer violation of Article 10-A of the Constitution, which grants right of fair trial and due process to every citizen of this country. He further submits that under Article 4 of the Constitution it is an inalienable right of every citizen to be treated in accordance with law and no action detrimental to his/her life, liberty, reputation or property shall be taken except as per law. He next argued that pension is not a bounty but a legitimate right earned by an employee after rendering the requisite service and the Petitioner could not be deprived of this right without lawful justification. He submitted that, through the impugned letter dated 08.05.2019, the Petitioner has been unlawfully deprived of his vested rights, which renders the impugned action unsustainable. He also contended that the actions of the Respondents are tainted with malice in law and are in violation of the constitutional guarantees enshrined under Articles 4, 9, 10, 10-A, 24, 25 and 37 of the Constitution. He lastly argued that the Petitioner has no other adequate and efficacious remedy available to him, therefore, he has filed this Petition for setting aside of the impugned letter/order.

(IV) RESPONDENTS' SUBMISSIONS

5. Conversely, M/s. Usman Jillani and Maaz-ul-Mulk, Advocates, have objected to the maintainability of this Petition on the grounds by stating that the rules of NCA have been declared as non-statutory by virtue of the amendment in Section 15 of the National Command Authority Act, 2010 (the "NCA Act"). In support of his arguments, learned counsel relied on the judgments reported as Waqas Rafi Awan v. National Engineering and Scientific Commission, Islamabad through Chairman and 2 others

(2021 PLC (C.S.) 1309), “MUHAMMAD BASHIR versus FEDERATION OF PAKISTAN and NESPAK and others” (2024 PLC (C.S.) 170) and Munda Eleven Cricket Club versus Federation of Pakistan and 4 others (PLD 2017 Lahore 802).

6. Mr. Usman Jilani, Advocate also objected to the maintainability of this Petition against armed forces including the Respondents/AWC, in the light of the judgments cited as “Jurists Foundation through Chairman v. Federal Government through Secretary, Ministry of Defence and others” (PLD 2020 SC 1), “Ex. Lt. Col. Anwar Aziz (PA-7122) v. Federation of Pakistan through Secretary, Ministry of Defence, Rawalpindi and 2 others” (PLD 2001 SC 549), “Muhammad Asif v. Federation of Pakistan through Secretary and 3 others” (2018 PLC (C.S.) Note 85), “Khalid Khan v. The State and 2 others” (PLD 2016 Peshawar 35), “Havaldar Mian Ramzan v. Federal Government, Ministry of Defence, through Chief of the Army Staff, General Headquarters, Rawalpindi” (2005 PLC (C.S.) 64), “Abdul Ghaffr Lakhani v. Federal Government of Pakistan and 2 others” (PLD 1986 Karachi 525) and “Squardon Leader (Retd.) Mushtaq Ali Tahirkheli v. Chief of the Air Staff, Pakistan Air Force, Peshawar and 3 others” (1989 CLC 2038), “Federation of Pakistan and others versus Raja Muhammad Ishaque Qamar and another” (PLD 2007 SC 498) and under Article 199(3) of the Constitution, which states that:

“(3) **An order shall not be made** under clause (1) on application made by or in relation to a member of the Armed Forces of Pakistan in respect of his terms and conditions of service, in respect of any matter arising out of his service, or in respect of any action taken in relation to him as a member of the Armed Forces of Pakistan.” (emphasis added)

7. I have heard the learned counsel for the parties and perused the record with their able assistance.

(V) DETERMINATION BY THE COURT**(a) Statutory Framework and its effect**

8. The foremost question requiring determination in this case is the maintainability of the instant writ petition under Article 199 of the Constitution against the Respondents, being a Strategic Organization working under the NCA. It is an admitted position on record that the Respondent/AWC is a Strategic Organization functioning under the NCA, constituted under NCA Act. The NCA, being an apex and autonomous statutory body, has been vested with wide-ranging powers under Section 7 of the Act, not limited to command and control all nuclear and space related matters but also to regulate the terms and conditions of its employees, their appointments, removals and other service-related matters. Section 7 of the NCA Act sets out the powers and functions of the NCA in respect of employees, the sub-sections are relevant and instructive towards the relationship of the NCA with its employees. For ready reference Section 7 *ibid* with the relevant sub-sections i.e. (a), (b), (c), (d), (e), (f), (n) and (p) are reproduced as under:

7. *Powers and functions of the Authority.* *The Authority shall have the powers to perform all such functions that are necessary to implement the objects and purposes of this Act which include, without being limited, to the following, namely:*

- (a) to exercise complete command and control over all nuclear and space related technologies, systems and matters;*
- (b) to supervise, manage and co-ordinate the administration, management, control and audit of budget, programmes and projects etc., of the Strategic Organizations;*
- (c) to authorize undertaking of specialized scientific and technological work;*
- (d) to prescribe specific terms and conditions of the employees including but not limited to, appointments, removals, promotions, transfers, integrity and reliability assessment and other related matters;*
- (e) to create classification amongst employees based on the sensitivity of the functions, nature of assignment, security considerations and in the interest of security of Pakistan;*
- (f) to take measures regarding employees in respect of their movement, communication, privacy, assembly or association, in the public interest or in the interest of integrity, security or*

defence of Pakistan or friendly relations with foreign states and public order;

...

(n) to take measures in respect of the movement, communication and interaction, etc. of any employee or person who is suspected of an attempt to commit an offence under this Act;

...

(p) to declare application of any other existing law, provisions of law, rules, regulations, etc. to its employees procedures, establishments, sites, buildings, lands, assets, equipments, partly or fully as the case may be.

9. Furthermore, under Section 9 of the Act, all employees of Strategic Organizations, including AWC, are deemed to be employees of the NCA and their service matters are governed accordingly. This Court in the judgment reported as “STRATEGIC PLANS DIVISION and another versus PUNJAB REVENUE AUTHORITY and others” (PLD 2024 Lahore 545) has already discussed the scope of the NCA Act in the following manner:

*Present a succinct overview of the factual background relevant to the case is that the Petitioner No.1/Strategic Plans Division (the “SPD”) is controlled by the Petitioner No.2/National Command Authority (the “NCA”) under the National Command Authority Act, 2010 (the “Act 2010”). The “SPD” functions as Secretariat of the Authority as defined under Section 2(a) of the “Act 2010” which functions and exercise its powers under Section 7 of the “Act 2010”. The Petitioners have an operational and statutory compulsion to perform specified functions in view of Section 7 of the “Act 2010” and it can be validly stated that certain services required in pursuance thereto may very well be deemed to be ancillary and incidental to the functions provided under Section 7 of the Act *ibid*. As per version of the Petitioners, they are aggrieved by the “impugned notices” issued by the Respondent No.1/PRA imposing an unlawful levy of provincial sales tax on the services; therefore, the same be declared as illegal having been issued without lawful authority.*

Further this Court has discussed the Preamble of the NCA Act in the following manner ... *while reading the preamble of the “Act 2010”, which clearly states that the “NCA” has been established for complete command and control over research, development, production and use of nuclear/space technologies as well as other related applications in various fields, besides providing safety and security of all personnel, facilities, information, installations or organizations and other activities or matters connected therewith or ancillary thereto; he has drawn attention towards the provision of Section 5 of the “Act 2010”, according to which, the “SPD” shall function as the Secretariat of the NCA and shall be headed by a Director General to be appointed by the Chairman, on recommendation of the Chairman Joint Chiefs of the Staff Committee.”.*

10. A crucial development in this regard is the amendment introduced through the National Command Authority (Amendment) Act, 2016, whereby a proviso was inserted in Section 15 of the Act, clearly stipulating that the rules, instructions or orders made with respect to employees of the NCA shall be non-statutory unless approved by the Federal Government and published in the official Gazette. In consequence thereof, the service rules governing the employees of NCA, including the National Command Authority Employee Service Rules, 2011 (the “NCA Employee Service Rules”), do not enjoy the status of statutory rules.

(b) Judicial Principles on Non-Statutory Service Regimes

11. The legal effect of such amendment has already been examined in detail by the superior Courts. The Islamabad High Court, in the Nescom case relied upon by learned counsel for the Respondents (mentioned supra) after considering the earlier judgment in “Shafique Ahmed Khan versus Nescom” (PLD 2016 SC 377) as well as the subsequent amendment, categorically held that the rules governing the employees of NCA are non-statutory in nature, therefore, the employees regulated under such framework are not amenable to the constitutional jurisdiction of the High Court under Article 199 of the Constitution. The said view has consistently been followed by other High

Courts as well. It is important to mention here that although the aforesaid **Nescom case** of the Islamabad High Court is not binding upon this Court but the issue involved in this case has elaborately been resolved therein. The concluding paragraph of the said judgment reads as follows:

“27. We, therefore, declare that the petitioners are regulated and governed under non statutory rules and thus not amenable to the jurisdiction of this Court under Article 199 of the Constitution. The constitutional petitions are consequently not maintainable and accordingly dismissed. In case any petitioner, after availing all the remedies available under section 11 of the Act of 2010 or the rules made there under, has a grievance of exceptional or extraordinary nature based on the ground of malafide or coram non judice then the latter may submit a representation before the Authority. In such an eventuality the Authority would be expected to constitute a committee pursuant to powers conferred under section 3(6) of the Act of 2010 for consideration of the grievances. Likewise, the Authority is also expected to constitute a committee and refer to it the petitions wherein non compliance of judgments/directions of this Court have been alleged and, resultantly, the contempt petitions are accordingly disposed of. Section 11 of the Act of 2010 provides a right of appeal against any order, action or inaction in respect of the terms and conditions of an employee and consequently the bar contained under the proviso of section 3 of the Law Reforms Ordinance, 1972, is attracted in case of the Intra Court Appeals. The Appeals are not maintainable and, therefore, accordingly dismissed.”

12. In addition to the above, it is also not disputed that the Petitioner was serving under a specialized strategic organization and his service conditions were regulated under the framework of NCA. Even otherwise, it is a settled principle of law that where the relationship between the parties is governed by non-statutory rules or is contractual in nature, the constitutional jurisdiction under Article 199 of the Constitution is ordinarily not attracted. In this context, reliance can safely be placed on the judgments rendered by the august Supreme Court of Pakistan, wherein it has been held that constitutional petitions are not maintainable in-service matters arising out of contractual or non-statutory employment.

13. At this juncture, it would also be advantageous to refer to another judgment of this Court i.e. **Nespak case**, wherein the nature and status of service rules of public sector entities have been thoroughly examined. The relevant para reads as follows:

“10. The nub of the matter is whether service rules of public sector companies or corporations are statutory or non-statutory. Undoubtedly, the statutory corporations and public sector companies are made under the companies law which is in this case the Companies Act, 1913 (now Companies Act, 2017). The Supreme Court of Pakistan has declared in various pronouncements such companies like Pakistan Steel Mills Corporations (PTCL), Sui Northern Gas Pipelines Limited (SNGPL), Oil and Gas Development Corporation Limited (OGDCL), Pakistan Television Corporation Limited (PTVCL), Pakistan International Airlines Corporation Limited (PIACL) and other public sector companies in Pakistan out of which only OGDCL has been declared as statutory, whereas SNGPL, PTVCL, PIACL have been declared as non-statutory. The issue whether these are rules made in the Statute or by the Act or by the Board, has been discussed in various judgments which will be discussed in later part of this judgment. However, there are various contradictory views of this Court in declaring Rules of certain bodies, authorities, boards, educational institutions, organizations as statutory or non-statutory in terms of their Service Rules or Regulations.”

Furthermore, this Court in another judgment i.e. **Munda Eleven case** (mentioned supra) by relying upon the judgment **Muhammad Zaman and others v. Government of Pakistan etc. (2017 SCMR 571)**, discussing maintainability of writ Petition in service matter, has held that:

“24. Importantly, under Section 3 of the Ordinance, the Government has powers to make boards for the control of sports in Pakistan for the purpose of promoting and developing uniform standards of competition in sports in Pakistan comparable to the standards prevailing internationally and regulating and controlling sports in Pakistan on a national basis. The 'sports' has been defined in Section 2(i) of the Ordinance, and recognizes cricket as a sport. Therefore, the issuance of the PCB

Constitution, under which PCB has been established, has the backing of law.

25. The case law submitted by the learned counsel of the Respondent, Muhammad Zaman *supra*, also ruled that the test of whether rules/regulations were statutory or otherwise was not solely whether their framing required the approval of the Government or not, rather it was the nature and efficacy of such rules/regulations. The Court had to see whether the rules/regulations dealt with instructions for internal control or management, in which case they would be non-statutory, or they were broader than and were complementary to the parent statute in matters of crucial importance, in which event they would be statutory.”

(c) Functional Test for Determining Maintainability

14. The Functional Test in determining the maintainability of writ petition under Article 199(5) of the Constitution was also discussed by this Court in “AOWN ABBAS BHATTI versus FORMAN CHRISTIAN COLLEGE and 2 others” (PLD 2018 Lahore 435) elaborating the ‘functional test’, ‘the application of test’ and ‘administrative control test’ and this view was followed by larger Bench of this Court in “DR. KHALID ZAMIR RASIB versus PROVINCE OF THE PUNJAB through Secretary Higher Education Department, Lahore and 4 others” (2021 PLC (C.S.) 994) by holding that “after analyzing the reasons by two learned Benches of this Court we endorse the viewpoint taken in the case of Aown Abbas Bhatti (*supra*) as it clinches the issue in its true perspective”. It is observed in view of the above said judgments and the status of “NCA” by applying the “Functional Test” that the “NCA Employee Service Rules” are neither issued under any Statute nor with approval of the Federal Government or to be published in official Gazette hence, the same cannot be treated as statutory rules. It is settled law that where the Rules or the Regulations are not required to be made with the approval of

the Federal Government, they cannot be termed as statutory in nature. The perusal of “NCA Employee Service Rules” shows that same are not framed under any Statute but were made by the NCA. Since Section 15 of the NCA Act empowers the NCA to make rules to carry out the objectives of the Act, so in order to regulate its employees in light of Section 7 and 9 the NCA has issued employees services rules from time to time. Therefore, these Rules are merely regulations, instructions and directions for internal use and management, hence, principle of 'Master and Servant' will be squarely applicable to the employees of the NCA”

15. It is to be noted that the NCA Act was enacted to establish NCA for complete command and control over research, development, production and use of nuclear and space technologies and other related applications in various fields and to provide safety and security of all personnel, facilities, information, installations or organizations and other activities or matter connected therewith on ancillary thereto. Moreover, the Strategic Organizations are defined under Section 2(d) of the Act, which includes Pakistan Atomic Energy Commission, Dr. A.Q. Khan Research Laboratories (KRL) and Space and Upper Atmosphere Research Commission. Whereas, Section 3(5) mentions that the Director General Strategic Plan Division shall act as the Secretary of the NCA.

16. Since separate provisions dealing with the employees are provided in the NCA Act and the NCA is fully competent to frame rules for regulating its internal affairs and service structure. Accordingly, the “NCA Employee Service Rules” have been formulated by the NCA itself for internal management and administration and not by the Federal Government for broader regulatory or statutory purposes. Such rules, being confined to internal governance and lacking statutory backing, do not partake the character of delegated legislation. Therefore, in terms of the settled legal position in the light of the Nescom Case, it is held that the said rules are non-statutory in nature.

17. Further guidance can be drawn from an unreported order passed by this Court at Rawalpindi Bench in W.P. No.3314 of 2015, titled as “Iftikhar Hussain Mughal, etc. versus Chairman National Command Authority, etc.” wherein the issue of maintainability of writ petitions in respect of NCA employees has been directly addressed, in the following manner:

5. *It is straightaway observed by this Court that an important legal question regarding the jurisdiction of this Court, in light of Section 15 of the National Command Authority Act, 2010, is involved in this case. For better understanding, the relevant section is reproduced hereunder:*

15. Power to make Rules. *The Authority may make rules for carrying out the objectives of this Act:*

[Provided that notwithstanding anything contained in any judgment decree, order, direction or declaration of any Court including the Supreme Court of Pakistan or in this Act or in any other law for the time being in force, the rules, instructions or orders already made, or which may be made, in respect of the employees and strategic organizations of the Authority shall be non-statutory unless approved by the Federal Government and Published in the Official Gazette of Pakistan.]

The aforesaid statutory provision unequivocally establishes that the service rules governing the respondents' department are non-statutory in nature, as they have neither been approved by the Federal Government nor published in the Official Gazette of Pakistan, as explicitly required under Section 15 of the National Command Authority Act, 2010. Consequently, the employment relationship between the petitioners and the respondents is contractual and governed by the principle of "master and servant".

6. *It is now a well-settled proposition of constitutional law that in service matters where the terms and conditions of employment are regulated through non-statutory rules, the remedy under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, is not available. The superior courts, including the Hon'ble Supreme Court, have consistently held that in the absence of statutory backing, such service disputes do not raise issues of public law and thus fall outside the ambit of judicial review under the constitutional jurisdiction. In this regard, reliance is placed on Pakistan Telecommunication Co.*

Ltd. Through Chairman vs. Iqbal Nasir and others (PLD 2011 SC 132), Muhammad Mubeen-us-Salam and others vs. Federation of Pakistan through Secretary, Ministry of Defence and others (PLD 2006 SC 602).

7. The mere fact that an organization is performing public functions or that it is established under a federal statute does not, by itself, render its rules statutory unless the rules governing service conditions are framed under delegated legislation and notified in the official gazette.

8. The petitioners' claims purely pertain to service matters such as promotion and back benefits, which involve factual controversies and internal policy decisions, falling within the exclusive domain of the employer. The Courts exercising jurisdiction under Article 199 are not meant to act as appellate forums in administrative or managerial decisions, particularly when the department in question enjoys organizational autonomy and discretion in matters of human resource management.

9. It is a matter of record that while adjudicating Writ Petition No.1226 of 2012, titled "Azhar Abbas vs. Project Management Organization and others," this Court has already adjudicated upon a matter of a similar nature involving employees whose service conditions were governed by/non-statutory rules.

10. In view of the non-statutory status of the governing service rules, the established jurisprudence of the superior courts, and the nature of the relief sought, this Court is of the firm view that the instant writ petition is not maintainable and is liable to be dismissed on the touchstone of jurisdictional incompetency under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973.

18. There is another unreported order passed by this Court at Multan Bench in W.P. No.4416 of 2024, titled as "Zahid Iqbal Vs. Federation of Pakistan, etc." wherein the Petitions were dismissed by observing that "After the amendment in law, rules so made by the respondents are non-statutory because the Parliament has declared them as such. Through the instant petition the Amendment Act has not been challenged. Thus, there is statutory declaration to the fact that the regulations of 2007 are non-statutory and cannot be afforded the status of statutory rules.

19. Moreover, the contention of the learned counsel for the Respondents regarding the bar contained under Article 199(3) of the Constitution also

carries weight, as the said provision restricts the exercise of constitutional jurisdiction in respect of matters relating to members of the Armed Forces or persons connected with defence services in relation to their terms and conditions of service. Although the precise status of the Petitioner may not strictly fall within the ambit of the Armed Forces, yet the nature of organization and its functional domain reinforces the limited scope of interference by this Court. Reliance in this regard is placed on the recent judgment of this Court reported as “Ummaira Saleem V/S Federation of Pakistan and others” (PLD 2023 Lahore 731 = PLJ 2023 Lahore 919) (Rawalpindi Bench), wherein it has been observed that:

7. *A bare perusal of the aforesaid provision would suggest that prima facie a High Court in exercise of its jurisdiction under Article 199(3) of the “Constitution” cannot pass any order in respect of any person who even for the time being is subject to any law pertaining to the Armed Forces with regard to any action taken under such law. The Pakistan Army Act, 1952, is one of the laws applicable to the Armed Forces of Pakistan. It is noted that this Court has already dismissed a writ petition (W.P.No.1459 of 2017) vide dated 11.03.2019 with the following observations:*

“The matter agitated, is hit by Article 199(3) of the Constitution, as also held in the earlier judgment passed by this Court in W.P.No.324/2012. Mere fact that after withdrawal of appeal (ICA), Respondent No.2, again dismissed Petitioner’s representation vide order dated 13.04.2017, will not confer jurisdiction on this Court, when it has already been held by this Court that in this case jurisdiction of this Court is barred under Article 199(3) of the Constitution”.

20. So far as the impugned order/decision of the Appellate Authority/Chairman, Joint Chief of Staff Committee, is concerned. The

Appellate Authority/Chairman, Joint Chief of Staff Committee, while rejecting the Petitioner's appeal has observed that:

5. *That after duly considering the facts along with the written and verbal submissions made by the Appellant, as well as the documentary proof available on the record, the Appellate Authority finds no strength in the instant appeal. In fact, keeping in view the unsatisfactory service record of the Appellant, his poor performance and past misconduct, as well as his unauthorized absence from service, the decision of the Competent Authority is being modified in exercise of the powers conferred under 14(f) of the National Command Authority Employees Efficiency and Disciplinary Rules 2010, as the service of the Appellant was terminated on the charge of inter alia, misconduct, poor performance and unauthorized absence from leave, and he failed to sufficiently defend his stance during the personal hearing granted to him.*

6. *The instant appeal is hereby disposed of, and the order of 'Termination from Service' passed by the Competent Authority is hereby modified to 'Dismissal from Service'.*

21. Perusal of the impugned order reveals that a proper right of audience, was afforded to the Petitioner and the Appellate Authority has passed a well-reasoned and speaking order after duly considering the written and verbal submissions as well as the material available on record. The findings so recorded are based on objective assessment of the Petitioner's service record, performance, and conduct, and do not suffer from any illegality or procedural irregularity. Therefore, the Petitioner cannot be said to have been condemned unheard or prejudiced in any manner.

(VI) CONCLUSION

22. In view of the above discussion, the legal position stands settled that the "NCA Employee Service Rules" governing the employees of the National

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Command Authority are non-statutory in nature and consequently, the relationship between the employer and employee is that of master and servant. It has consistently been held in the aforesaid judgments that in such like cases, service disputes do not give rise to enforceable rights under public law and are not amenable to constitutional jurisdiction under Article 199 of the Constitution. The principle has further been clarified through the application of the functional test, whereby internal rules regulating service conditions, not having statutory backing, cannot be made the basis for invoking constitutional remedies. In the present case, the Petitioner's grievance pertains purely to service matters arising out of a non-statutory framework, for which departmental remedies were available and availed. Moreover, the impugned order has been passed by the competent authority after affording due opportunity of hearing and is a reasoned decision, not suffering from any illegality or jurisdictional defect. Therefore, no case for interference by this Court is made out. Accordingly, by relying upon the judgments rendered in the cases of Nescom, Nespak and Munda Eleven, the instant writ petition being not maintainable and devoid of force, is **dismissed**. However, the Petitioner, if so advised, may approach the proper forum for redressal of his grievance.

(JAWAD HASSAN)
JUDGE

Approved for reporting.

JUDGE

ZI@.UR.REHMAN